

HOUSE No. 573

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect children from adults in positions of authority or trust.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/16/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>1/28/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/3/2025</i>
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>2/20/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/20/2025</i>
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>6/26/2025</i>

HOUSE No. 573

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 573) of Carole A. Fiola and others that the Department of Elementary and Secondary Education be authorized to adopt an abuse prevention policy. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect children from adults in positions of authority or trust.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 119A the
2 following chapter:-

3 CHAPTER 119B. CHILD SEXUAL ABUSE PREVENTION

4 Section 1. For the purposes of this chapter, the following words and phrases shall have
5 the following meanings:-

6 “Abuse”, an act involving a minor that constitutes a sexual offense under the laws of the
7 Commonwealth or any sexual misconduct between an adult and a minor under the care of that
8 individual.

9 “Abuse prevention policy”, a policy adopted by a school that supports the prevention of
10 sexual abuse by outlining a code of conduct for employees that identifies inappropriate behavior
11 between a teacher and a minor or student.

“Age-appropriate”, topics, messages and teaching methods suitable to particular ages or age groups of children and adolescents, based on developing cognitive, emotional, and behavioral capacity typical for the age or group.

“Department, the Massachusetts department of elementary and secondary education.

“Employee”, a person defined as such in section 148B of chapter 149.

“Job performance” includes, but is not limited to, abilities, attendance, attitude, awards, demotions, disciplinary actions, duties, effort, knowledge, promotions, skills, and in the case of a former school employee, the reasons for separation.

“Mandated reporter”, a person defined as such in section 21 of chapter 119.

“Minor”, a person under 18 years of age.

“School”, a public or private educational institution that serves minors in the Commonwealth, including an entity with the mission of providing activities and socialization for minors that is operated by such an educational institution.

“Sexual misconduct”, any action directed towards or with a minor, regardless of the age of the minor that is designed to promote a romantic or sexual relationship with the minor. Such acts, include but are not limited to:

sexual or romantic invitation;

dating or soliciting dates;

engaging in sexualized or romantic dialogue;

31 making sexually suggestive comments;

32 self-disclosure or physical exposure of a sexual, romantic or erotic nature; or

33 any sexual, indecent, romantic or erotic contact with a minor or student.

34 Section 2. School Abuse Prevention Policies

35 (a) Every school shall adopt the abuse prevention policy as set forth by the department of
36 elementary and secondary education. The abuse prevention policy shall support the prevention of
37 sexual abuse by outlining a code of conduct for employees that identifies inappropriate behavior
38 for employees and students. The policy shall also detail the institution's procedures for meeting
39 its obligations under section 51A of chapter 119.

40 (b) The department, in consultation with the office of the child advocate, the department
41 of children and families and the department of early education and care shall create the abuse
42 prevention policy for schools across the Commonwealth.

43 (c) The department shall review the model abuse prevention policy at least once every 5
44 years to ensure it includes up-to-date information and best practices.

45 Section 3. School Employee Sexual Abuse Prevention Education

46 (a) All mandated reporters employed by a school shall receive instruction biennially on
47 the prevention, identification, and reporting of child sexual abuse. This instruction shall include
48 comprehensive training and information to help schools and their personnel:

49 (1) recognize, appropriately respond to and prevent behaviors violating the school abuse
50 prevention policy;

(2) recognize, appropriately respond to, and prevent sexually inappropriate, coercive, or abusive behaviors between minors' served by schools;

(3) identify the ways in which the behavioral and verbal cues for sexual abuse differ from those of other abuse and neglect;

(4) support the healthy development of students and minors, and the building of protective factors, to mitigate against their sexual victimization by adults or by other minors;

(5) respond to disclosures of sexual abuse or reports of behaviors violating the abuse prevention policy of adults or minors in a supportive and appropriate manner that meets mandated reporting requirements under section 51A of chapter 119;

(6) seek out community resources available to assist schools in the prevention, identification, reporting and referral to treatment of cases involving the sexual abuse or exploitation of minors.

(b) The department shall use tested, research-based instructional materials that meet the requirements of subsection (a). The mode of delivery for the trainings may include in-person or e-learning instruction.

(c) The department shall adapt, implement and maintain an existing evidence-based online or in-person training course to satisfy the requirements of subsection (b); provided, however, that if the department cannot find an existing program to adapt to this purpose, then the department shall create, implement, maintain and update such a training program; provided further, that such training program shall be provided to schools at no cost.

(d) For each training required under this section, each school shall maintain records that include the names of the individuals within their school.

(e) The department shall make the abuse prevention policy publicly available on its website.

Section 4. Youth Sexual Abuse Education

(a) Every school that serves elementary or secondary school students and every youth-serving organization shall provide age-appropriate instruction to help students and children served by such schools:

(1) recognize and report inappropriate behavior in adults that may indicate that they pose a sexual risk to minors

(2) recognize and report inappropriate behaviors in other children that may indicate that they pose a sexual risk to children and youth

(3) learn how to develop healthy and respectful interpersonal relationships, including appropriate body boundaries and privacy rules;

(4) learn how to communicate effectively to trusted adults and any concerns they do have about body boundaries or privacy violations

(5) learn about available school and community resources to prevent and respond to sexual abuse; and

(6) recognize and understand the consequences of false, inaccurate, or exaggerated reports and the importance of children reporting honestly to the best of their ability.

(b) The department shall use tested, research-based instructional materials that meet the requirements of subsection (a) and assist schools in implementing the program. The mode of delivery for the trainings may include in-person or e-learning instruction. For each training required under this section, each school shall maintain records that include the names of the individuals within their school who participated in the training during that year. The department shall make the abuse prevention policy publicly available on its website.

SECTION 2. Chapter 268 of the General Laws is hereby amended by inserting after section 21A the following new section:-

Section 21B. A person over the age of 21 who is employed by or contracts with a public or private school, the department of elementary and secondary education, the department of youth services, the department of children and families, the department of mental health, the department of developmental services or a private institution that provides services to clients of such departments, who is a teacher, administrator or a person in a similar position of authority in the school, department or institution and, in the course of such employment or contract or as a result thereof, engages in, within or outside of the school, department or institution, sexual relations with a person who is (i) under the age of 19, has not received a high school diploma, general educational development certificate or equivalent document and is served by the school, department or institution; or (ii) under the age of 22, has special needs under chapter 71B, has not received a high school diploma, general educational development certificate or equivalent document and is served by the school, department or institution, shall have a cause of action against such an employee or contractor, under chapter 260, section 4C. In a civil action commenced under said section, a person served by such school, department or institution shall be deemed incapable of consent to sexual relations with such an employee or contractor.

SECTION 3. Chapter 268 is hereby further amended by inserting after section 21B the following new section:-

Section 21C. A person over the age of 21 who is employed by or contracts with a public or private school, the department of elementary and secondary education, the department of youth services, the department of children and families, the department of mental health, the department of developmental services or a private institution that provides services to clients of such departments, such as an administrator, teacher, counselor, coach, bus driver, or a person in a position of authority in the school, department, or institution, and in the course of such employment or contract or as a result thereof, engages in, within or outside of the school, department or institution, sexual relations with a person who is: (i) under the age of 19, has not received a high school diploma, general educational development certificate or equivalent document and is served by the school, department or institution; or (ii) under the age of 22, has special needs under chapter 71B, has not received a high school diploma, general educational development certificate or equivalent document and is served by the school, department or institution, shall be punished by imprisonment in a state prison for not more than 5 years or in a jail or house of corrections for not more than 2 ½ years, by a fine of \$10,000 or by both such fine and imprisonment. Registration as a sex offender shall be required. In the case of a teacher or other licensed professional, revocation of the teaching certificate or professional license shall also be required. In a prosecution commenced under this section, an individual served by such school, department or institution shall be deemed incapable of consent to sexual relations with the person.